

24STCV02122 24STCV02122

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-19

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Case Number: 24STCV02122 Hearing Date: August 19, 2026 Dept: 732

Cassidy Rephann, et al. v. Forward Westwood, Inc., et al.

Wednesday, August 19, 2026

CASE NUMBER: 24STCV02122

UNOPPOSED

Plaintiffs Cassidy

Rephann and Laura Pyle's Motion to Enforce Settlement Agreement and Enter Judgment (CCP § 664.6)

Facts:

This action arises out of an employment dispute. Plaintiff Cassidy Rephann and Laura Pyle ("Plaintiffs") became employees of Defendant Forward Westwood, Inc. ("FWI") and at the time of filing, were employees of FWI. Plaintiffs were salaried employees, exempt from overtime laws. Plaintiffs allege they were improperly classified as salaried employees exempt from California's overtime laws when neither plaintiff qualifies for an exemption because Plaintiffs are not earning a monthly salary more than twice the minimum wage, Plaintiffs do not regularly exercise discretion and independent judgment as part of their job duties, and Plaintiffs do not have the authority or power to make any decisions on matters of significance free from immediate direction or supervision.

Procedural

History:

On

January 26, 2024, Plaintiffs filed a Complaint against Defendants FWI, Edward Krifcher, Paul Morris, Joseph Sacavitch, and Does 1-20 alleging five causes of action:

1.

Violation of Labor Code § 226(a) (Inaccurate Wage Statements)

2.

Violation of Labor Code § 510 (Failure to Pay Overtime)

3.

Violation of Labor Code §§ 201, 202, and 218 (Failure to Pay Wages Owed)

4.

Violation of Labor Code §§ 226.7 and 512(a) (Failure to Provide Meal & Rest Breaks)

5.

Violation of Business & Profession Code §§ 17200 et seq.

On

April 12, 2024, Defendants filed their Answer.

On

March 11, 2026, Plaintiffs filed a request for dismissal without prejudice and with the court retaining jurisdiction of the entire action of all parties and all causes of action.

Analysis:

MOTION

TO ENFORCE SETTLEMENT

Code Civ. Proc. section 664.6 states that:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

“Section

664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit. [Citation.] It is for the trial court to determine in the first instance whether the parties have entered into an enforceable settlement. [Citation.] In making that determination, ‘the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. [Citation.] Trial judges may consider oral testimony or may determine the motion upon declarations alone. [Citation.] When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory. [Citation.]’ [Citation.]” (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1359–1360.)

Plaintiffs move for an order enforcing the settlement agreement entered into between Plaintiffs and Defendants and entering judgment against Defendants in the total sum of \$181,420.38 pursuant to Code of Civil Procedure section 664.6. This constitutes the principal settlement amount of \$175,000.00, prejudgment interest of \$4,560.38, attorney’s fees and costs of \$1,860.00, and continuing interest rate of \$47.95 per day.

On March 5, 2026, the parties executed a settlement agreement where Defendants agreed to pay Plaintiffs a total of \$175,000.00 in seventeen equal installment payments, with the first payment being due on April 3, 2026. (Declaration of N. Cory Barari (“Barari Decl.”), ¶ 3; Ex. B § 2.1(b).) Under the settlement agreement, if an installment remained unpaid for 45 calendar days after the original due date, an acceleration of the entire settlement amount would occur. (Barari Decl., Ex. B § 2.1(c).)

Plaintiffs state that they performed all obligations required of them under the settlement agreement including dismissing the action without prejudice with the Court retaining jurisdiction under Code of Civil Procedure section 664.6. (Barari Decl., ¶ 4; Ex. B § 2.1(d), Ex. C.) Plaintiffs state Defendants defaulted on the settlement agreement because they did not make the first payment, they did not cure the default nor communicate with Plaintiffs after Plaintiffs' counsel gave notice to defense counsel, and they did not pay any sums for more than 45 days. (Barari Decl., ¶ 4; Ex. D.) As of the filing of the motion, no sums have been paid at all. (Barari Decl., ¶ 4.)

As an initial matter, this court possesses jurisdiction to hear the motion, notwithstanding dismissal. Code of Civil Procedure § 664.6 permits the court to retain jurisdiction to enforce the agreement following dismissal as follows: "If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." (Code Civ. Proc. § 664.6, subd. (a).) Importantly, case authority holds that this request for a retention of jurisdiction "may, but need not be, a part of the settlement agreement itself." (Wackeen v. Malis (2002) 97 Cal.App.4th 429, 440.) Here, the parties expressly stipulated to this court's retention of jurisdiction under section 664.6 in their settlement agreement and Plaintiffs dismissed the action without prejudice with the Court retaining jurisdiction under Code of Civil Procedure section 664.6. (Barari Decl., Ex. B § 2.1(d); Ex. C.) Thus, the Court retains jurisdiction.

The Court finds that Defendants have failed to perform under the settlement agreement as they have not made any payments for more than 45 days and Plaintiffs' counsel gave Defense counsel proper notice of the default. Accordingly, the Court grants the motion to enforce settlement.

The settlement agreement provides for interest in the event of default and acceleration as follows: 7% interest for the first 30 days on any past-due installment payment, 10% interest on days 31-45 of that past-due installment payment, and then 10% interest per annum on the entire outstanding balance from the date of acceleration. (Barari Decl., Ex. B § 2.1(c).) Thus, the Court grants pre-judgment interest in the amount of \$4,458.90 (\$59.23 for the first 30 days + \$42.30 for the 15 days thereafter + \$4,458.90 after acceleration). As long as the principal amount remains unpaid, there is a continuing interest

rate of \$47.95 per day ($\$175,000 \times 0.10 \times (1/365)$).

The settlement agreement also provides for attorney's fees and costs. (Barari Decl., Ex. B § 15.) Thus, the Court grants \$1,260.00 (2 hours at \$600/hour plus \$60 filing fee).

Accordingly, the Court GRANTS the motion to enforce judgment, and judgment is entered in the principal amount of \$175,000.00, plus prejudgment interest in the amount of \$4,458.90, a continuing interest rate of \$47.95 as long as the principal amount remains unpaid, and \$1,260.00 in attorney's fees and costs.

Superior Court of California

County of Los Angeles

Department 732

CASSIDY REPHANN, et al.,

Plaintiffs,

v.

FORWARD WESTWOOD, INC., et al.

Defendants.

Case No.:

24STCV02122

Hearing Date:

[TENTATIVE] RULING RE:

PLAINTIFFS

CASSIDY REPHANN AND LAURA PYLE'S MOTION TO ENFORCE SETTLEMENT AGREEMENT AND
ENTER JUDGMENT (CODE CIV. PROC., § 664.6)

Plaintiffs Cassidy Rephann and Laura Pyle's Motion to

Enforce Settlement Agreement and Enter Judgment is GRANTED, and judgment is entered against Defendants Forward Westwood, Inc., Edward Krifcher, Paul Morris, and Joseph Sacavitch jointly and severally in the principal amount of \$175,000.00, plus prejudgment interest in the amount of \$4,458.90, a continuing interest rate of \$47.95 per day as long as the principal amount remains unpaid, and \$1,260.00 in attorney's fees and costs.

Counsel for Plaintiffs to provide Notice.

Dated: August 19, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court